

02:00 PM **LINE 8**

25-CIV-05705

STEPHEN WEST VS. BRIANNA EYEN

STEPHEN WEST
BRIANNA EYEN

ELIJAH MARCUS UNDERWOOD
MISSY M CORNEJO

Motion to Determine Value and Send Buyout Notice

TENTATIVE RULING:

On April 22, 2026, the court set June 24, 2026 as the date of the hearing on plaintiff Stephen West's "Motion to Determine Value and Send Buy-Out Notice." Neither party has submitted any papers setting forth the appraiser's valuation of the property. Accordingly, the hearing is **VACATED**.

02:00 PM **LINE 9**

25-CIV-07053

SVETLANA YEPANECHNIKOVA VS. 200 ASSOCIATES, LLC, ET AL

SVETLANA YEPANECHNIKOVA
200 ASSOCIATES, LLC

JOHN F. DOMINGUE

Motion to Quash Service of Summons

TENTATIVE RULING:

Specially appearing defendant Alexandra Degai's motion to quash service of summons of plaintiff Svetlana Yepanechnikova's complaint filed September 11, 2025, is **DENIED**.

Degai shall file an answer no later than ten (10) court days following notice of entry of this order.

A. Background

The underlying action involves a loan amongst friends to assist defendants in the purchase and improvement of an investment property. Plaintiff's complaint alleges plaintiff agreed to loan defendants \$690,000 in exchange for a deed of trust so she would have an interest in the property to secure her loan, but defendants later refused to providing or recording the deed of trust, and also failed to pay back the loan.

Defendant Alexandra Degai has moved to quash service, arguing that plaintiff failed to properly serve her in compliance with California law, and that as a result, the court lacks personal jurisdiction over Degai. Plaintiff opposes, contending that several efforts at personal service were made at Degai's personal residence, which she shared with her husband and co-defendant, however both parties contrived to evade service upon Degai. The registered process server ultimately served Degai's husband and mailed a copy of the summons, complaint and related papers. (Declaration of Krista Clawson iso Plaintiff's Opp., filed June 10, 2026, ¶ 2-4, exhs. A-C.)

B. Legal Standard

A motion to quash under Code of Civil Procedure, section 418.10, subdivision (a) may be made in a special appearance for the purpose of contesting personal jurisdiction due to improper service. (Code Civ. Proc., § 418.10, subd. (a)(1); *Stancil v. Superior Ct.*, (2021) 11 Cal.5th 381, 393 (*Stancil*).)

"[A] court gains jurisdiction over the defendant from the time the defendant is served with a copy of the summons and the complaint on which it's based, as required under the Code of Civil Procedure. (Code Civ. Proc. §§ 410.50, 412.20; *Stancil, supra*, 11 Cal.5th at p. 392.) "On a motion to quash service of summons, the plaintiff bears the burden of proving by a
